

24NWCV04964 24NWCV04964

County: los-angeles

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Department: P

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Case Number: 24NWCV04964 Hearing Date: September 24, 2026 Dept: P

RUBALCAVA, JR. v.

JAGUAR LAND ROVER NORTH AMERICA, LLC

CASE NO.: 24NWCV04964

HEARING: 09/24/2026 @ 9:30 AM

#5

TENTATIVE ORDER

Defendant Jaguar Land Rover

North America, LLC's motion to compel Plaintiff to appear
for a deposition is GRANTED

Moving party to give notice.

Defendant Jaguar Land Rover North America, LLC (Defendant)

moves to compel Plaintiff Jose L. Rubalcava, Jr. (Plaintiff) to appear for
deposition.

Background

On December 20, 2024, Plaintiff filed this lemon law action
against Defendant and Does 1 through 10,
inclusive. The complaint alleges that on December 18, 2020, Plaintiff purchased
a 2020 Land Rover Range Rover Velar, VIN No.: SALYK2EX6LA253846 (Subject
Vehicle). (Complaint, ¶ 8.) The complaint alleges the Subject Vehicle was

delivered to Plaintiff with defects and nonconformities to warranty including engine, electrical, emission, and transmission system defects. (Complaint, ¶ 10.) The complaint asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty, (2) violation of Song-Beverly Act – breach of implied warranty, and (3) violation of the Song-Beverly Act section 1793.2.

Legal Standard

“If, after service of a deposition notice, a party to the action...without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document...described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document...described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).) The motion “shall...set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (b)(1).)

“Any party served with a deposition notice that does not comply with Article 2...waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” (Code Civ. Proc., § 2025.410, subd. (a).)

Meet and Confer

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition...by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Defendant details multiple attempts to meet and confer with Plaintiff regarding deposition dates and states that Plaintiff failed to respond. (Stoliker Decl., ¶¶ 8, 10, 12, 13.) While Defendant does not show whether the parties met and conferred as to all issues arising out of this motion, the Court proceeds to rule on the merits of this motion based on Plaintiff’s

failure to respond to Defendant's emails.

Discussion

Defendant moves to compel Plaintiff to appear for a deposition with production of documents on the grounds that Plaintiff has failed to appear for three depositions or produce Code-compliant responses.

Defendant recounts that it first served a Notice of Deposition on May 5, 2025 for a June 10, 2025 deposition date. (Stoliker Decl., ¶ 3.) Plaintiff objected to the Notice of Deposition on the grounds that the deposition was unilaterally set and Plaintiff was not available. These same events repeated after Defendant served an Amended Notice of Deposition on April 10, 2026 and another on June 30, 2026. (Stoliker Decl., ¶¶ 5-9.)

In opposition, Plaintiff contends that this motion should be denied or found moot because Plaintiff confirmed that he would appear for a deposition on September 24, 2026 at 10 AM. (Fernandez Decl., ¶ 14.)

In reply, Defendant confirms that this deposition date is confirmed but argues that Plaintiff only provided this date after Defendant filed this motion and that this date falls one day before the deposition cut-off and does not offer flexibility.

Here, Defendant establishes that it properly noticed Plaintiff's deposition on multiple occasions and that Plaintiff has failed to appear. Given that this deposition has not yet been conducted, this motion is not moot.

Based on the foregoing, an order compelling Plaintiff to appear for deposition is warranted. Given that this deposition is scheduled to occur 30 minutes after the hearing on this motion, the Court will confer with the parties at the hearing about any relevant updates.

Next, Plaintiff argues that Defendant failed to file a separate statement with this motion. In reply, Defendant argues that it only seeks to compel Plaintiff's attendance at the deposition. This is confirmed by the proposed order. Defendant's motion does not address the content of the requests for production and thus the Court does not address it. (See Cal. Rules of Court, rule 3.1345(a)(5) ["Any motion involving the content of a discovery

request or the responses to such a request must be accompanied by a separate statement”].)

Accordingly, Defendant's motion to compel Plaintiff to appear for a deposition is GRANTED. Plaintiff Jose L. Rubalcava, Jr. is ORDERED to appear for the deposition scheduled for September 24, 2026 at 10 AM or at a different time prior to the discovery cut-off.